

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

Index No: 600371/2021

DIANE C. DESOUSA and
DIANE C. DESOUSA AS EXECUTOR OF
THE ESTATE OF THOMAS E. DESOUSA,

Plaintiffs,

-against-

RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,

Defendants.

**AFFIRMATION IN OPPOSITION
TO DEFENDANT CALVAGNO'S
ORDER TO SHOW
CAUSE/MOTION FOR SUMMARY
JUDGMENT**

Motion Seq. #005

JOHN N. CUOMO, an attorney duly licensed to practice law in the State of New York,
affirms under the penalties of perjury as follows:

1. I am the attorney for Plaintiffs, **DIANE C. DESOUSA** ("Mrs. DeSousa") and, now with the passing of **THOMAS E. DESOUSA**, for **DIANE C. DESOUSA AS EXECUTOR OF THE ESTATE OF THOMAS E. DESOUSA** ("The Estate of Thomas E. DeSousa", collectively "Plaintiffs") in the above-captioned action.
2. As such, I am fully familiar with the facts and circumstances of this case and submit this Affirmation in Opposition to Defendant **RICHARD A. CALVAGNO II**'s ("Calvagno") Order to Show Cause seeking summary judgment dismissing Plaintiffs' Complaint in its entirety and awarding attorney's fees.

PRELIMINARY STATEMENT

3. Defendant's latest motion recycles the same unavailing arguments advanced in a prior and similar motion for summary judgment ([Motion Seq. 002](#)), which were properly opposed by Plaintiffs in their prior Affirmation in Opposition ([NYSCEF Doc. No. 83](#)). Rather than presenting new,

compelling evidence, Calvagno continues to rely upon blanket denials, self-serving characterizations, and, as this Court will again observe, a transparently and factually unsupported attempt to reframe, what Defendant clearly recognizes as a straightforward neighbor dispute as a referendum on his sexual identity. The law does not permit summary judgment on this record.

4. As set forth below, Plaintiffs have raised, and continue to raise, genuine triable issues of material fact on each of their four causes of action. Calvagno's motion must be denied in its entirety.
5. Defendant's counsel simultaneously characterizes this action as arising from "Plaintiffs' shameless complaints against the Defendant and Defendant's unashamed gay lifestyle," while also dismissing it as "nothing more than personal squabbles between quarreling neighbors." ([NYSCEF Doc #128 Affirmation of Jason M. Barbara, hereafter "Barbara Aff."](#) at ¶¶ 1–2) These two assertions are irreconcilable. If this dispute is truly a routine neighbor disagreement, then it cannot also be the product of discriminatory animus. Conversely, if Defendant believes Plaintiffs' complaints were motivated by bias, that accusation would describe serious misconduct, not a trivial squabble. Defendant offers no evidence to support this inflammatory allegation, and his own inconsistent framing of the dispute defeats it.
6. Defendant's affirmation nevertheless opens, and repeatedly returns to, the assertion that this lawsuit is nothing more than a product of discriminatory prejudice against Calvagno's "unashamed gay lifestyle." ([Barbara Aff.](#) ¶¶ 1–2) This framing is as legally irrelevant as it is rhetorically inflammatory. The causes of action pled in this case arise from Calvagno's conduct: the excessive noise from his high-powered Dodge Charger Hellcat; his unlawful commercial use of his residential property for boat slip rentals and catered events; and his allowance of trash and debris to accumulate in violation of the Village of Amityville Code, causing a rat infestation on Plaintiffs' property. None of these claims has anything to do with Calvagno's sexual orientation, and the continued invocation

of that irrelevancy does not transform a disputed factual record into one suitable for summary judgment.

7. In substance, Calvagno's claims are an effort to obscure his own misconduct and maltreatment of the Plaintiffs, both of whom were in their mid-to-late seventies at all relevant times in this action.
8. Defendant's motion is also procedurally premature and factually deficient. On a motion for summary judgment, the moving party bears the initial burden of demonstrating, through admissible evidence, the absence of any triable issue of material fact. *Jacobsen v. New York City Health & Hosps. Corp.*, 22 N.Y.3d 824 (2014). Calvagno has not met that burden. To the contrary, each of Defendant's core factual assertions is directly contradicted by deposition testimony, documentary evidence, police reports, medical records, and the admissions of Calvagno himself.
9. Two arguments in Defendant's affirmation warrant preliminary attention. First, Calvagno selectively quotes Mrs. DeSousa's deposition testimony in which she asked, "Do we really have to go this far?" ([NYSCEF Doc 127 Affidavit of Richard A. Calvagno, hereafter "Calvagno Aff."](#) ¶ 13.) He improperly offers this remark as purported evidence that Plaintiffs themselves believe their claims lack merit. That contention is a willful mischaracterization of the testimony.
10. Ms. DeSousa's response to that question reflects the understandable reluctance of a decent person to be drawn into protracted litigation with a neighbor, not an admission that her husband's symptoms were fabricated, that the decibel readings were false, or that the rat infestation did not occur. Her continued participation as a Plaintiff in this action for more than five years speaks for itself.
11. The question posed by Calvagno's counsel (Ms. Hamid), to Ms. DeSousa, which elicited that response, "Do we really have to go this far?", occurred during Ms. Hamid's questioning of Ms.

DeSousa on matters of minutiae, such inquiries, while familiar and commonplace to attorneys, can be surprising and deemed intrusive by individuals unfamiliar with the litigation process.

12. Calvagno claims throughout his affidavit that Mr. DeSousa in particular, and Plaintiffs in general, were prejudiced and full of hate, and that they were stalking, menacing and harassing him. Yet, these are unsubstantiated allegations unsupported by any exhibit, deposition testimony, or police report, and have no evidentiary value on a motion for summary judgment. *Zuckerman v. City of New York*, 49 N.Y.2d 557, 562 (1980) (“mere conclusions, expressions of hope or unsubstantiated allegations or assertions are insufficient” to defeat or support summary judgment).

LEGAL STANDARD

13. Summary judgment is a drastic remedy and should be granted only where no triable issue of fact exists. *Andre v. Pomeroy*, 35 N.Y.2d 361, 364 (1974). On such a motion, “facts must be viewed in the light most favorable to the non-moving party.” *Jacobsen*, 22 N.Y.3d at 833. The movant must tender sufficient admissible evidence to establish the absence of material issues of fact; failure to do so requires denial of the motion regardless of the sufficiency of the opposing papers. *Winegrad v. New York Univ. Med. Ctr.*, 64 N.Y.2d 851, 853 (1985). Once the movant satisfies this threshold, the burden shifts to the non-movant to present evidentiary proof in admissible form raising a triable issue. *Zuckerman v. City of New York*, 49 N.Y.2d 557, 562 (1980). As demonstrated below, Calvagno has failed to make the required prima facie showing on any of Plaintiffs' causes of action, and even if he had, Plaintiffs have more than adequately raised triable issues precluding summary judgment. Ultimately, where, as here, the movant’s own submissions reveal disputed facts, internal inconsistencies, or credibility questions, the movant has failed to satisfy its prima facie burden as a matter of law, and the motion must be denied without regard to the sufficiency of the opposing papers. *Winegrad v. New York Univ. Med. Ctr.*, 64 N.Y.2d 851, 853 (1985). Defendant’s motion

repeatedly invites this Court to resolve factual disputes and credit his version of events over Plaintiffs', a request that is fundamentally incompatible with summary judgment.

ARGUMENTS

POINT I

CALVAGNO'S THRESHOLD PROCEDURAL ARGUMENT REGARDING THE COMPLAINT'S ALLEGED PLEADING DEFECT IS WITHOUT MERIT

14. Defendant argues that Plaintiffs' Complaint contains a fatal pleading defect because ¶4 of the Complaint erroneously refers to Plaintiffs, rather than Defendants, as the owners of 320 Grand Central Avenue. This argument has no merit and should be rejected.
15. CPLR §3026 mandates that pleadings "shall be liberally construed" and directs that defects "shall be ignored if a substantial right of a party is not prejudiced." Calvagno has failed to identify, because he cannot, any prejudice resulting from this typographical error. From the very outset of this litigation, Calvagno has been on notice of precisely which property is at issue, which conduct is complained of, and the specific nature of each cause of action. He has had the full benefit of discovery, depositions, and over three years of litigation in which to prepare his defense. The error is, as Plaintiffs have previously argued, *de minimis*. See *Torres v. Torres*, 13 Misc. 3d 1167, 1169-70 (Civ. Ct. 2006).
16. The purpose of pleading requirements is to provide notice, not to serve as a technical trap. The Complaint, read as a whole, unmistakably identifies Calvagno's property and his tortious use thereof. Dismissal on this ground would elevate form over substance in precisely the manner CPLR §3026 was designed to prevent.

POINT II**PLAINTIFFS HAVE RAISED TRIABLE ISSUES OF FACT ON THEIR
FIRST CAUSE OF ACTION: PRIVATE NUISANCE**

17. The elements of a private nuisance cause of action are an interference (1) substantial in nature, (2) intentional in origin, (3) unreasonable in character, (4) with a person's property right to use and enjoy land, (5) caused by another's conduct in acting or failure to act. *Aristides v. Foster*, 73 A.D.3d 1105, 1106 (2d Dep't 2010). "[E]xcept for the issue of whether the plaintiff has the requisite property interest, each of the other elements is a question for the jury, unless the evidence is undisputed." *Broxmeyer v. United Cap. Corp.*, 79 A.D.3d 780, 782-83 (2d Dep't 2010). Defendant's motion also fails because the existence of any one substantial and unreasonable interference with the use and enjoyment of land is sufficient to defeat summary judgment and requires a trial. Defendant's attempt to parse Plaintiffs' claims and demand dispositive proof as to each ignores the governing standard, as well as the obligations placed upon Plaintiffs in a summary judgment motion. Contrary to Defendant's assertions, the evidence is very much in dispute.

A. Vehicle Noise

18. Calvagno claims in his affirmation that police reports found "no merit" to Plaintiffs' complaints and that no violations were ever issued. [Barbara Aff.](#) ¶2(A). This is flatly contradicted by the record. Police reports from May 26, 2021 and February 11, 2022 (Exhibit A) document Plaintiffs' complaints of reckless driving and excessive noise, and critically, the May 2021 report directed Plaintiffs to call police when Calvagno's car was idling "so that [they] may respond and take action if needed." This is not a finding of innocence; it is a directive to address the ongoing problem. Moreover, police records confirm that officers parked nearby specifically to observe Calvagno's conduct and he was in fact ticketed on at least one occasion. Calvagno's claim of a clean record with law enforcement is not supported by the evidence. Finally, the absence of a citation or arrest

does not conclusively establish the absence of conduct worthy of a violation, or conduct that amount to a nuisance. It could signal that he hadn't yet been caught. Law enforcement operates with inherent discretion, constrained by limited observation windows and the episodic nature of the conduct at issue. The absence of a formal citation does not transform disputed conduct into undisputed fact. Defendant cites no authority holding that municipal non-enforcement precludes a private nuisance claim as a matter of law.

19. Calvagno further contends that a letter from Westbury Jeep establishes his vehicle was not modified, and asserts that Plaintiffs' challenge to this letter was "unsuccessful." See, [Calvagno Aff.](#)

¶25. This is demonstrably false. The letter, signed by Service Director Stephen Garguilo attested that an inspection of Calvagno's vehicle was performed on June 17, 2021. But Garguilo testified at deposition that he did not know whether any inspection actually occurred, no inspection records exist, and he personally did not perform any inspection (see, Exhibit B at 15). Westbury Jeep's Shop Foreman, William Wurster, further testified that the dealership does not check exhausts, mufflers, or decibel levels during any inspection (Exhibit C at 22-23). A fourth Westbury Jeep employee, Paul Valenzano, was also deposed. Notably, Calvagno concedes that he has a longstanding "professional relationship" with Westbury Jeep through his employer ([Calvagno Aff.](#) ¶24), a relationship that plainly supplies the motive for the dealership to have prepared a favorable letter on his behalf without actually performing the inspection to which it attests. The letter is contradicted by the testimony of the very witnesses Calvagno relies upon to authenticate it. It is not competent evidence of anything.

20. Where a motion for summary judgment turns on the credibility of witnesses or the reliability of documentary proof, and the movant's own evidence is contradicted by deposition testimony from the very witnesses offered to support it, summary judgment must be denied. The Court may not

resolve whether Defendant's explanation is truthful, whether an inspection actually occurred, or whether the proffered letter reflects reality rather than advocacy. Those determinations are the exclusive province of the jury.

21. The documentary and testimonial evidence is powerful and unrefuted by competent proof. Plaintiffs provided photographic evidence of decibel readings taken from *inside* their home reaching as high as 79.9 dB(A), exceeding the limits set by VTL §375(31)(a), VTL §386(3)(b), and Village of Amityville Code §114-3. Mrs. DeSousa testified that Calvagno's vehicle sounds like a "rocket taking off" each morning and literally shakes her bed. (See Exhibit D at 11). Mr. DeSousa testified the car "exploded every morning" (Exhibit E, at 35) and that vibrations could be felt even with windows closed (Exhibit E, at 36; *see also*, Exhibit F). These physical, measurable impacts on Plaintiffs' home constitute interference with their use and enjoyment of their property as a matter of law, regardless of whether any citation was issued.
22. Calvagno argues Plaintiffs failed to provide an expert report. But expert testimony is not required to establish a private nuisance claim based on noise. *See Broxmeyer*, 79 A.D.3d at 783 (summary judgment denied based on party affidavits alone describing adverse effects of noise on enjoyment of home). The decibel measurements, testimony, and medical evidence in this record are more than sufficient to raise a triable issue of fact.
23. Calvagno also argues that no other neighbors joined the action or submitted supporting affidavits. Barbara Aff. ¶8. This statement is contradicted by the record. Police records confirm that neighbor Elizabeth Ranker filed her own complaint in February 2022 specifically reporting that Calvagno operated his vehicle in a reckless manner, and police noted they "are aware of [Calvagno] operating in a reckless manner in the past." Email communications from two additional former neighbors, Pat

Schneider and James Veneziano, also document complaints about noise from Calvagno's vehicle.

Calvagno's characterization of Plaintiffs as isolated complainants is belied by the record.

B. Commercial Use of Property: Boat Slip Rentals

24. Calvagno contends that he does not rent boat slips and that the only relevant testimony is from Vincent Camarda, who denies paying rent. [Barbara Aff.](#) ¶2(B). The record paints a far more complicated picture. Calvagno himself admitted at deposition that he sought and was denied a permit from the Village of Amityville to store boats commercially at his bulkhead, yet continued to offer dockage/storage to multiple third-party boats there in defiance of that denial. Photographs document at least four boats at his private slip (Exhibit G). Parties who docked and used boats at Calvagno's property routinely parked in front of Plaintiffs' home and blocked their driveway.

25. Critically, Calvagno's testimony about the identity of individuals storing/docking boats at his property was evasive and incredible. He claimed not to know the last names or contact information of individuals he described as long-time friends, people whose phone numbers he could not locate and whose boats he had allowed on his property for years. This testimony raises, rather than defeats, a triable issue of fact as to whether Calvagno was in fact renting boat space commercially. Whether or not he is ultimately found to have done so, the undisputed interference caused by the traffic, parking, and congestion associated with these boats independently sustains the nuisance claim. *Broxmeyer*, 79 A.D.3d at 783.

C. Commercial Use of Property: Parties and Catering

26. Calvagno does not dispute that his parties were crowded, noisy, ran into the early morning hours, caused traffic congestion, and resulted in guests parking in front of Plaintiffs' home and blocking their driveway. [Barbara Aff.](#) ¶2(B). He contests only whether he charged for these events. But as this Court recognized in the analogous *Broxmeyer* context, whether the underlying conduct is

technically lawful is not dispositive of the nuisance question. The interference with Plaintiffs' property rights is actionable regardless.

27. Moreover, Calvagno's deposition testimony again raises credibility questions that cannot be resolved on a motion for summary judgment. He claims Plaintiffs only complain of “two (2) parties at [his] home” (NYSCEF#37), however, this ignores both Mr. DeSousa’s testimony and his own in which he admitted to “having parties all the time” at his home. With respect to one such particular event, a wedding he hosted in October 2020, for his friend “Elaine.” Elaine was a person Calvagno purportedly had known since high school (Exhibit H, at 141). Yet, when asked to identify “Elaine’s” full name, he incredibly testified he could not recall her married name or how to spell her maiden name (*id*). His own affidavit contradicts his deposition by understating the frequency of his events. Calvagno further failed to provide an affidavit from “Elaine,” or anyone else, attesting to his claim that he gratuitously held these parties at his home. It is clear that these inconsistencies are not appropriately resolved at the summary judgment stage.

D. Trash, Debris, and Rat Infestation

28. Plaintiffs established through testimony and photographs that Calvagno allowed litter and uncovered trash and debris to accumulate on his property (*see*, Exhibit I) in violation of Village of Amityville Code §§97-3 and 97-9, resulting in a rat infestation at Plaintiffs' property requiring professional extermination services (Exhibit J). Calvagno does not dispute in his current motion that he caused a rat infestation, nor that he allowed uncovered garbage to be placed in front of his home in violation of the Village Code. This uncontested interference with Plaintiffs' property independently supports the private nuisance claim.

E. Plaintiffs Have Demonstrated Damages

29. Defendant devotes considerable attention to the argument that Plaintiffs failed to prove damages, citing *Hogan v. County of Lewis* for the proposition that a private nuisance claim requires proof of diminution in property value. [Barbara Aff.](#) ¶7. This argument mischaracterizes the law and ignores the record.
30. Damages for private nuisance need not be limited to diminution in market value—particularly where, as here, the interference is ongoing. New York courts recognize that where a nuisance is temporary, the measure of damages is the "reduction of the rental or usable value of the property", a standard that encompasses Plaintiffs' documented inability to sleep, enjoy their property, or freely use their driveway and street. Moreover, the *Hogan* court's dismissal was based on a complete failure to allege or present any damages whatsoever. That is not this case.
31. Here, Plaintiffs have presented: (1) medical evidence from Dr. Ronald I. Cohen, documenting ongoing trauma, panic reactions, sleep loss, pervasive distrust, and cardiovascular episodes triggered by Calvagno's conduct (Exhibit K); (2) testimony from both Plaintiffs regarding physical symptoms including upset stomach, nausea, sleeplessness, and inability to use their own street; (3) invoices from a hired exterminator to address the rat infestation caused by Calvagno's refuse (*see*, Exhibit J); and (4) documented decibel readings establishing measurable physical intrusion into Plaintiffs' home. This evidence of actual harm more than satisfies any damages threshold required to survive summary judgment.
32. Defendant's assertion that Plaintiffs admitted to "not seeing any doctors" at the commencement of the action is a selective misreading of the record. The medical evidence from Dr. Cohen, the exterminator invoice, and the physical symptoms documented in deposition testimony collectively establish real, measurable, compensable harm. Whether Plaintiffs saw a doctor on the precise day

the Complaint was filed is irrelevant to whether they sustained damages throughout the course of Calvagno's conduct.

POINT III

PLAINTIFFS HAVE RAISED TRIABLE ISSUES OF FACT ON THEIR SECOND CAUSE OF ACTION: PUBLIC NUISANCE

33. Defendant argues that public nuisance is not actionable by a private person absent special injury.

[Barbara Aff.](#) ¶9. Plaintiffs do not dispute the legal standard. What Defendant ignores is that Plaintiffs have established precisely the kind of special injury that differentiates their harm from that of the community at large.

34. The positioning of Calvagno's vehicle, with its exhaust intentionally directed toward Plaintiffs' residence, causes deep vibrations that literally shake their bed, a physical intrusion distinct from the noise experienced by others on the block. Unlike other neighbors who merely hear Calvagno's car, Plaintiffs experience structural vibrations throughout their home. Parties and boat users consistently park in front of Plaintiffs' home specifically and block their driveway, this is not a generalized neighborhood inconvenience, but a specific, targeted impairment of their access to their own property. Finally, the rat infestation caused by Calvagno's refuse required professional remediation at Plaintiffs' expense, an injury suffered by no other neighbor and documented by exterminator invoices (Exhibit J). This combination of individualized, documented injuries establishes special harm beyond what the community at large has suffered. *See Leo v. Gen. Elec. Co.*, 145 A.D.2d 291 (2d Dep't 1989).

35. Defendant's assertion that "NO other neighbors have lodged a complaint or joined with Plaintiffs" ([Barbara Aff.](#) ¶8) is directly refuted by the record. Neighbor Elizabeth Ranker filed a police report on February 19, 2022 reporting that Calvagno was operating his vehicle recklessly; the responding officers noted they "are aware of [Calvagno] operating in a reckless manner in the past" (Exhibit

L, *see also*, Exhibit M). Email communications from two additional former neighbors, Pat Schneider and James Veneziano, further document complaints about noise from Calvagno's vehicle (Exhibit N, *see also* Exhibit O and Exhibit P). That other neighbors experienced the general nuisance only underscores that Plaintiffs, subjected to the directional vibration impact, systematic driveway blockage, and rat infestation, suffered a special injury of a different kind and degree than the community at large.

36. Defendant's reliance on the absence of formal governmental enforcement does not extinguish Plaintiffs' claim. Even where no agency has formally cited a defendant, private plaintiffs who suffer special injuries distinct from those of the general community may maintain a private action. *See 532 Madison Ave. Gourmet Foods v. Finlandia Ctr.*, 96 N.Y.2d 280, 292 (2001); *Broxmeyer v. United Cap. Corp.*, 79 A.D.3d 780, 783 (2d Dep't 2010) (summary judgment denied despite absence of code violation where plaintiffs demonstrated adverse impact on use and enjoyment of their property). Whether Plaintiffs suffered special injury of the requisite kind and degree is a question for the jury. Calvagno's motion on the public nuisance cause of action must be denied.

POINT IV

PLAINTIFFS HAVE RAISED TRIABLE ISSUES OF FACT ON THEIR THIRD CAUSE OF ACTION: NUISANCE PER SE

37. Defendant asserts that "nuisance per se" is not cognizable as an independent cause of action under New York law. [Barbara Aff.](#) ¶11. The Defendant however, is wrong. The Second Department has expressly recognized nuisance per se as a viable theory of recovery. *State v. Fermenta ASC Corp.*, 238 A.D.2d 400, 403 (2d Dep't 1997) *citing*, *Delaney v. Philhern Realty Holding Corp.*, 280 N.Y. 461, 465 (1939)); *Overocker v. Madigan*, 113 A.D.3d 924 (3d Dep't 2014). Under this theory, a plaintiff need only establish (1) a violation of law and (2) the remaining nuisance elements; proof

of intentional or negligent conduct is not required. *Fermenta*, 238 A.D.2d at 403. Defendant's failure to cite or address this controlling authority is telling.

38. Plaintiffs' decibel evidence alone establishes evidence sufficient to raise a triable issue as to statutory violation. Photographic evidence of readings taken from *inside* Plaintiffs' home reached as high as 79.9 dB(A) ("Exhibit Q"), exceeding the 76 dB(A) ceiling for vehicles under 10,000 pounds on public highways at 35 mph or less set by VTL §386(3)(b), as well as the prohibitions on excessive or unusual noise under VTL §375(31)(a) and Village of Amityville Code §114-3. These readings are unrefuted by any competent evidence. Calvagno's sole response, the Westbury Jeep letter attesting to an inspection its own Service Director admitted under oath never occurred, and which the Shop Foreman confirmed would not have checked exhausts or decibel levels in any event, cannot constitute the admissible proof required to defeat summary judgment. *Zuckerman v. City of New York*, 49 N.Y.2d 557, 562 (1980).

39. The Village of Amityville Code violations are likewise uncontested. Calvagno does not dispute in his current motion that he placed uncovered garbage in front of his home in violation of §97-3, or that his conduct caused a rat infestation at Plaintiffs' property. His application for a commercial boat storage permit was denied by the Village (Exhibit H at 143), yet he continued to store multiple third-party boats at his bulkhead (Exhibit G) in violation of §183-43 prohibiting commercial activity in B Residence Districts. These uncontested statutory violations independently satisfy the first element of nuisance per se. Because Plaintiffs have also established the remaining nuisance elements as set forth in Point II above, Calvagno's motion for summary judgment on this cause of action must be denied.

POINT V

PLAINTIFFS HAVE RAISED TRIABLE ISSUES OF FACT ON THEIR FOURTH CAUSE OF ACTION: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

40. Defendant contends that Plaintiffs' claim for intentional infliction of emotional distress ("IIED") fails because they cannot establish conduct sufficiently "outrageous" to satisfy the governing standard. ([Barbara Aff.](#) ¶¶12–13.) This argument fails because it once again ignores the actual evidentiary record and misapplies the standard governing summary judgment on an IIED claim.
41. Defendant's analysis improperly treats Plaintiffs' claim as though it were based on a single, isolated incident. It is not. Plaintiffs allege, and have produced evidence of, a sustained, years-long course of deliberate conduct, repeatedly directed at Plaintiffs' home, despite notice, complaints, and foreseeable harm. Conduct that may appear tolerable in isolation may become outrageous when it is repeated, targeted, and knowing, as the record here demonstrates.
42. Defendant relies heavily on *Taggart v. Costabile*, 131 A.D.3d 243 (2d Dep't 2015), but that case is inapposite. In *Taggart*, the defendant's alleged misconduct was entirely passive—a failure to intervene in tenant disputes—and the court found no basis for IIED liability. Here, by contrast, Defendant's conduct is active, repetitive, and specifically directed at Plaintiffs' residence. Nearly every morning for years, Defendant idled, revved, and accelerated a high-performance vehicle positioned so as to project maximum noise and vibration directly at Plaintiffs' home. This conduct continued despite repeated complaints to law enforcement and municipal authorities and despite Defendant's awareness of its impact on Plaintiffs' ability to sleep, feel safe, and use their home. *Taggart* therefore underscores, rather than defeats, Plaintiffs' claim.
43. *Taggart* does confirm that the dispositive question is the nature and directedness of the defendant's conduct, and on that question Plaintiffs' case is categorically stronger. *See also*,

Silverman v. Park Towers Tenants Corp., 206 A.D.3d 417 (1st Dep’t 2022); *Mitchell v.*

Giambruno, 35 A.D.3d 1040 (3d Dep’t 2006).

44. Critically, Defendant’s knowledge of Plaintiffs’ complaints, coupled with his persistence in the same conduct over years, establishes reckless disregard of the probability of severe emotional and physical harm, which New York law treats as sufficient to satisfy the intent element of an IIED claim.
45. This is not ordinary neighbor friction. It is a sustained pattern of conduct carried out with knowledge of its consequences. Defendant’s attempt to characterize his behavior as merely “living his life openly and peacefully” does not negate the documented, measurable, and foreseeable harm caused to Plaintiffs.
46. Plaintiffs have submitted competent medical evidence supporting a claim of severe emotional distress. Dr. Cohen notes Mr. DeSousa “experiences ongoing trauma and repeated exposure to overwhelming noise with respect to [Calvagno’s vehicle].” This “prolonged psychological distress has produced increasing guardedness, panic reactions, loss of sleep and pervasive distrust” and is “consistently affected by the ongoing overwhelming stress related to the volatile relation with his neighbor.” Finally, Dr. Cohen notes “Mr. DeSousa’s chronic cardiovascular disease has been consistently affected by the ongoing overwhelming stress related to the volatile relation...trigger[ing] numerous episodes of dizziness and extreme chest pains.”
47. Additionally, Mrs. DeSousa testified that she is unable “to sleep late in the morning” because the noise is “so loud” that it shakes her bed (Exhibit D at 11). Mrs. DeSousa also testified she suffers from nausea and an upset stomach to the point where she must take over-the-counter medicine to treat her symptoms (Exhibit D at 12-13). This testimony, viewed together with Dr. Cohen’s report, establishes far more than trivial or transient emotional upset.

48. Plaintiffs have submitted un rebutted medical evidence and testimony of severe emotional distress connected to the Defendant's conduct. As a matter of law, where plaintiffs present competent medical and other evidence supporting a claim of severe emotional distress, whether that suffering was genuine and extreme is a question for the jury and not amenable to summary disposition. *See, e.g. Eves v. Ray*, 42 A.D.3d 481 (2d Dep't 2007); *Roach v. Stern*, 252 A.D.2d 488 (2d Dep't 1998).
49. Ultimately, Defendant's argument asks the Court to minimize Plaintiffs' evidence, credit Defendant's characterization of his own conduct, and resolve factual and credibility disputes in his favor. That is not the role of the Court on a motion for summary judgment. Because reasonable jurors could differ as to whether Defendant's conduct was outrageous and whether it caused Plaintiffs severe emotional distress, Plaintiffs' IIED claim must proceed to trial.
50. Accordingly, Defendant's motion for summary judgment dismissing Plaintiffs' fourth cause of action for intentional infliction of emotional distress must be denied.

POINT VI

DEFENDANT'S APPLICATION FOR COUNSEL FEES AND SANCTIONS MUST BE DENIED IN ITS ENTIRETY

A. The Legal Standard Under 22 NYCRR §130-1.1 is Demanding and Must Be Strictly Construed

51. Defendant seeks \$59,590.00 in counsel fees pursuant to 22 NYCRR §130-1.1, characterizing Plaintiffs' action as "completely without merit" and asserting it was brought to harass. [Barbara Aff.](#) ¶¶16-18. The application must be denied. The authority to award sanctions under §130-1.1 is discretionary, not mandatory, and courts have consistently cautioned that it must be "exercised with restraint and discretion." *Levy v. Carol Mgt. Corp.*, 260 A.D.2d 27, 34 (1st Dep't 1999). The statute "was not intended to operate as a fee-shifting provision in favor of the prevailing party." *Navin v.*

Mosquera, 30 A.D.3d 883, 885 (3d Dep’t 2006). It targets conduct that is an abuse of process—not losing litigation or litigation with which the opposing party disagrees.

52. Conduct is frivolous under §130-1.1(c) only if it satisfies one of three criteria: (1) it is completely without merit in law and cannot be supported by a reasonable argument for an extension, modification or reversal of existing law; (2) it is undertaken primarily to delay or prolong the resolution of the litigation, or to harass or maliciously injure another; or (3) it asserts material factual statements that are false. The statute is to be strictly construed; a claim that is simply unsuccessful does not qualify as frivolous. *Stone Mountain Holdings, LLC v. Spitzer*, 119 AD3d 548,549 (2d Dept. 2014). Not one of the three criteria is satisfied here.

B. Plaintiffs’ Claims Are Far from “Completely Without Merit”

53. The most fundamental prerequisite for a sanctions award, that the opposing party’s position be “completely without merit in law”, is plainly absent. As demonstrated at length in the preceding Points, each of Plaintiffs’ four causes of action is supported by admissible evidence, grounded in well-established New York law, and capable of surviving summary judgment. A claim supported by deposition testimony, photographic evidence, decibel readings, police reports, a physician’s assessment, an exterminator invoice, and Calvagno’s own contradictory admissions cannot by any measure be deemed “completely without merit.”

54. Courts in the Second Department have repeatedly refused to impose sanctions where the losing party’s position, however ultimately unavailing, had a reasonable legal and factual basis. *See, e.g., Mascia v. Maresco*, 39 A.D.3d 504, 506 (2d Dep’t 2007) (sanctions denied where claims, though dismissed, were not entirely without basis in law or fact). Even if a plaintiff does not prevail, that does not render his conduct frivolous”. Here, Plaintiffs have not merely presented colorable claims—they have presented a substantial evidentiary record that, at minimum, raises genuine

triable issues of material fact. *Finkelman v. SBRE, LLC*, 71 AD3d 1081 (2d Dept. 2010). The frivolousness threshold is not met.

C. There Is No Evidence That This Action Was Brought to Harass

55. Calvagno's motion implies, without any evidentiary foundation, that Plaintiffs commenced and maintained this action "primarily" to harass him on the basis of his sexual orientation. [Barbara Aff.](#)

¶¶1-2. This is a serious accusation that is wholly unsupported by the record. To establish frivolousness, the movant must demonstrate that the litigation was "completely without merit in law and cannot be supported by a reasonable argument for an extension, modification or reversal of existing law" or it is "undertaken primarily to delay or prolong the resolution of the litigation, or to harass or maliciously injure another". *Miller v. Falco*, 170 A.D.3d 707, 710 (2d Dep't 2019).

56. The record demonstrates the opposite. Plaintiffs commenced this action in January 2021 after years of documented complaints to the police and municipal authorities about measurable, objective harms: noise levels exceeding legal thresholds recorded inside their home; reckless driving; commercial activity in a residential zone; and trash accumulation producing a rodent infestation. These are not pretexts or grievances manufactured to antagonize a neighbor, they are documented, specific, and legally cognizable harms. The fact that Calvagno is gay is irrelevant to whether the noise from his Dodge Charger Hellcat exceeds 76 dB(A) on a public roadway. Calvagno's attempt to immunize himself from litigation by framing legitimate nuisance claims in the language of discrimination is a litigation tactic, not a legal argument, and should be rejected as such.

D. Plaintiffs' Factual Assertions Are Not False

57. The third prong of §130-1.1, that a party has “asserted material factual statements that are false”, is equally inapplicable. Defendant’s motion identifies no specific factual assertion by Plaintiffs that is demonstrably false. To the contrary, Plaintiffs’ factual contentions are supported throughout the record. The claim that Calvagno’s vehicle generates excessive noise is confirmed by photographic decibel readings. The claim that other neighbors complained is confirmed by police reports and email correspondence. The claim that Calvagno’s parties caused parking and access problems is confirmed by Mr. DeSousa’s testimony, which Calvagno himself does not substantively dispute. The claim that his garbage caused a rat infestation is confirmed by the exterminator invoice.
58. Defendant’s repeated characterization of Plaintiffs’ claims as resting on “information and belief” does not render them false, it describes how a complaint is initially pled before discovery. After three-plus years of litigation including full paper discovery and multiple depositions, Plaintiffs’ factual allegations have been amply substantiated. The third prong of §130-1.1 is not satisfied.

E. The Fee Application Is Procedurally and Substantively Deficient on Its Face

59. Even setting aside the merits, Defendant’s fee application fails on its own terms. Under 22 NYCRR §130-1.1, a sanctions award must be supported by particularized findings by the court regarding the specific conduct deemed frivolous and the reasons it satisfies the statutory definition. *See, Shapiro v Kurtzman*, 149 A.D.3d 1117, 1118 (2d Dep’t 2017) (“a court must set forth the conduct on which the award is based”). A bare assertion that a lawsuit lacks merit, advanced by the opposing party in a self-serving affirmation, is not a substitute for the required judicial findings.
60. Defendant seeks attorneys’ fees pursuant to 22 NYCRR § 130-1.1 in the amount of \$59,590, in a similar application in June 2024 Defendant sought attorney’s fees in the amount \$44,700.00. During the intervening 20 months since June 2024 this matter has been stayed the majority of that time due to the death of Plaintiff Thomas E. DeSousa. Even assuming arguendo that Defendant’s fee request

was otherwise cognizable, the amount sought is unsupported and unexplained, as is the sudden increase by nearly \$15,000 in fees incurred over the course of the stay. Defendant has presented no affidavit from a disinterested attorney attesting to the reasonableness of the fees sought, no itemized breakdown sufficient to permit meaningful judicial scrutiny of what work was done, when, and at what rate, and no analysis tethering any particular billing entry to the conduct Defendant characterizes as frivolous. Even in cases where sanctions are warranted, which this is not, a movant bears the burden of establishing that the fees sought are both reasonable and causally connected to the specific frivolous conduct identified. *Matter of Minister, Elders & Deacons of Refm. Prot. Dutch Church of City of N.Y. v. 198 Broadway*, 76 N.Y.2d 411, 413 (1990). Defendant has made no such showing.

61. The Court should also note the record also reflects conduct by Defendant that undermines his request for sanctions. Throughout this litigation, Defendant has himself engaged in conduct warranting scrutiny: submitting a letter from Westbury Jeep attesting to an inspection that its own Service Director admitted under oath never occurred and for which no records exist; filing an Affidavit that contradicts Calvagno's own deposition testimony regarding the frequency of his parties and the identities of the individuals who stored boats at his property; refusing to identify or provide contact information for individuals described as long-time friends storing boats on his property; and repeatedly invoking his sexual orientation as a litigation shield in a case that has nothing whatsoever to do with it. A party whose own credibility is so thoroughly undermined by the record is poorly positioned to seek sanctions against his opponents.

F. An Award of Sanctions Would Chill Legitimate Litigation
and Contravene the Purposes of §130-1.1

62. Courts have recognized that fee awards under §130-1.1 must be imposed, if at all, with careful attention to their deterrent purpose, which is to discourage the abuse of legal process, not to punish

parties who bring legitimate but hard-fought claims. *Navin*, 30 A.D.3d at 885; *see also Matter of Kernisan v. Taylor*, 171 AD2d 869, 870 (2d Dept. 1991) (cautioning against use of sanctions to discourage meritorious litigation). Awarding sanctions against Plaintiffs here, individuals who documented noise levels exceeding legal limits inside their own home, suffered a rodent infestation requiring professional remediation, and obtained a physician's assessment confirming psychological and cardiovascular harm, would send precisely the wrong message to litigants with legitimate grievances.

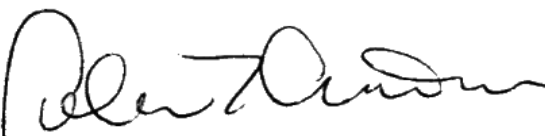
63. Indeed, the very argument Calvagno advances, that his sexual orientation warrants the imposition of financial consequences upon neighbors who report alleged nuisances, finds no support in §130-1.1. Acceptance of such a theory would improperly immunize certain defendants from accountability in a manner neither contemplated nor permitted by the rule. Section 130-1.1 exists to protect the integrity of the courts from baseless and abusive litigation, not to deter parties from pursuing factually grounded claims simply because the defendant invokes a protected personal characteristic. This case is neither. Defendant's application for sanctions must be denied in its entirety.
64. Finally, Mr. Calvagno notes that Plaintiffs deposed a fellow neighbor. Vincent Camarda. Upon information and belief this deposition was taken because the Defendant had noted at some point that Mr. Camarda was to be a key witness for the Defendant.
65. Mr. Camarda appeared for his deposition on February 1, 2024, represented by counsel, and his 38 minutes of testimony were taken without issue.
66. It should also be noted that on April 3, 2026, Defendant's witness Vincent Camarda, pled guilty in the United States District Court for the Eastern District of New York (CR-26-0051) to two counts of a securities investment/Bernard Madoff style fraud involving hundreds of investors, and

stealing upwards of 138 million dollars. While Mr. Camarada is awaiting sentencing, he faces not only substantial jail time, but asset forfeiture (criminal) as well.

CONCLUSION

For all the foregoing reasons, Defendant Richard A. Calvagno II's Order to Show Cause for Summary Judgment must be denied in its entirety. Plaintiffs have raised genuine, material triable issues of fact on each of their four causes of action and have demonstrated actual, documented damages. Defendant's cross-motion for counsel fees must likewise be denied.

Dated: Commack, New York
April 9, 2026



JOHN N. CUOMO, ESQ.

Attorney for Plaintiffs

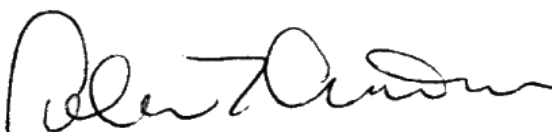
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CERTIFICATION PURSUANT TO UNIFORM RULES 202.8-b

John N. Cuomo, an attorney duly admitted to practice law before the Courts of the State of New York, certifies that the foregoing Affirmation in Opposition was prepared using a word processing system and that the total word count, excluding the caption, signature block, and this certification, is 6,782.

Dated: Commack, New York
April 9, 2026

A handwritten signature in black ink, appearing to read "John N. Cuomo", written over a horizontal line.

JOHN N. CUOMO, ESQ.

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